

cation to and from the President may be discounted by the Court's adoption of a novel "balancing" test for determining whether it is constitutional.⁷ I agree with the Court that the three branches of Government need not be airtight, *ante*, at 443, and that the separate branches are not intended to operate

⁷ As a matter of original inquiry, it might plausibly be claimed that the concerns expressed by the Framers of the Constitution during their debates, and similar expressions found in the Federalist Papers, by no means require the conclusion that the Judicial Branch is the ultimate arbiter of whether one branch has transgressed upon powers constitutionally reserved to another. It could have been plausibly maintained that the Framers thought that the Constitution itself had armed each branch with sufficient political weapons to fend off intrusions by another which would violate the principle of separation of powers, and that therefore there was neither warrant nor necessity for judicial invalidation of such intrusion. But that is not the way the law has developed in this Court.

Marbury v. Madison, 1 Cranch 137 (1803), not only established the authority of this Court to hold an Act of Congress unconstitutional, but the particular constitutional question which it decided was essentially a "separation of powers" issue: whether Congress was empowered under the Constitution to expand the original jurisdiction conferred upon this Court by Art. III of the Constitution.

Any argument that *Marbury* is limited to cases involving the powers of the Judicial Branch and that the Court had no power to intervene in any dispute relating to separation of powers between the other two branches has been rejected in *Myers v. United States*, 272 U. S. 52 (1926); *Humphrey's Executor v. United States*, 295 U. S. 602 (1935); and *Buckley v. Valeo*, 424 U. S. 1 (1976). In so doing, these cases are entirely consistent with the following language from *United States v. Nixon*, 418 U. S. 683 (1974):

"In the performance of assigned constitutional duties each branch of the Government must initially interpret the Constitution, and the interpretation of its powers by any branch is due great respect from the others. The President's counsel, as we have noted, reads the Constitution as providing an absolute privilege of confidentiality for all Presidential communications. Many decisions of this Court, however, have unequivocally reaffirmed the holding of *Marbury v. Madison*, 1 Cranch 137 (1803), that '[i]t is emphatically the province and duty of the judicial department to say what the law is.' *Id.*, at 177." *Id.*, at 703.